

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Robert Fitzgerald
Judge of the Superior Court
County of Orange
700 Civic Center Drive West
Santa Ana, CA 92701

Re: Quinones, Michael Aaron
CDC No.: P94626
Case No.: 98CF0845
Date of Sentence: August 25, 2000

Dear Honorable Robert Fitzgerald:

The purpose of this letter is to provide the court with authority to resentence Michael Aaron Quinones pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Quinones was sentenced in 2000, and was convicted of section 245, subdivision (b), Assault W/Semi-Auto Firearm. The trial court sentenced inmate Quinones on August 25, 2000. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Quinones's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Quinones's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amendment 3, Felony Information

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Public Defender

ABSTRACT OF JUDGMENT—PRISON COMMITMENT—TERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

P94626 TL

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <u>ORANGE</u> ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT:		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER SEP 21 2000 ALAN SLATER, Clerk of the Court <i>T. Lewis</i> BY T. LEWIS <i>72</i>			
PEOPLE OF THE STATE OF CALIFORNIA vs. DOB: 10/23/80 DEFENDANT: <u>QUINONES, MICHAEL AARON</u>					
AKA: CII#: A11676949 BOOKING #: <u>1841705</u> <i>9-21-00</i>					
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT					
DATE OF HEARING <u>8/25/00</u>		DEPT. NO. <u>C39</u>		JUDGE <u>ROBERT FITZGERALD</u>	
CLERK <u>J. GILROY</u>		REPORTER <u>SANDRA WINGERD</u>		PROBATION NO. OR PROBATION OFFICER	
COUNSEL FOR PEOPLE <u>CAROL HENSON, DDA</u>		COUNSEL FOR DEFENDANT <u>SALVATORE CIULLA</u>		☐ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

☒ Additional counts are listed on attachment
1 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MON.
5	PC	245(b)	ASSAULT W/SEMI-AUTO FIREARM	1998	7 / 21 / 00	☒			U							9	0
10	PC	12025(a)(2)	(b)(3) Conc. Firearm-Active Gang Pe	1998	7 / 21 / 00	☒			L		☒					0	8
12	PC	186.22(a)	STREET TERRORISM	1998	7 / 21 / 00	☒					☒					0	8
18	PC	496(a)	REC. STOLEN PROPERTY	1998	7 / 21 / 00	☒						☒				0	8
20	HS	11359	POSS. MARIJ. FOR SALE	1998	7 / 21 / 00	☒						☒				0	8
2	PC	245(b)	ASSAULT W/SEMI-AUTO FIREARM	1998	7 / 21 / 00	☒								☒			

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
5	186.22(b)(1) PC	3	12022.5(a) PC	10	12022.7 PC	3			16 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667(b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 0 0

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 27 8

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

(Continued on reverse)

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: QUINONES, MICHAEL AARON			
98CF0845	-A	-B	-C

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$ 10,000.00 per PC 1202.4(b) forthwith per PC 2085.5.
b. RESTITUTION FINE of: \$ _____ per PC 1202.45 suspended unless parole is revoked.
c. RESTITUTION of: \$ _____ per PC 1202.4(f) to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in Item 11, below.)
(1) ☐ Amount to be determined.
(2) ☐ Interest rate of: _____ % (not to exceed 10% per PC 1204.4(f)(3)(F)).
d. ☐ LAB FEE of: \$ _____ for counts: _____ per H&SC 11372.5(a).
e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a).
f. ☐ FINE of: \$ _____ per PC 1202.5.

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
b. ☐ DNA pursuant to ☐ PC 290.2 ☐ other (specify):

11. Other orders (specify):

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
c. ☐ after revocation of probation.

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
98CF0845 -A	1,086	944	142 ☐ 4019 ☒ 2933.1
-B			☐ 4019 ☐ 2933.1
-C			☐ 4019 ☐ 2933.1
-D			☐ 4019 ☐ 2933.1

DATE SENTENCE PRONOUNCED: 8/25/00
SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE	DATE
	9/21/00

